# PECHANGA BAND OF LUISEÑO INDIANS CODE OF ORDINANCES

## TITLE 10

## TRIBAL LABOR AND EMPLOYMENT CODE

## DIVISION 2

## EMPLOYMENT RIGHTS

## ARTICLE 1

## PECHANGA EMPLOYMENT CLAIMS ACT OF 2018

**1.1 Title.** This Act shall be known and cited as the Pechanga Employment Claims Act of 2018 ("Act"), Pechanga Code of Ordinances Title 10, Division 2, Article 1.

**1.2 Authority & Enactment.** This Act was enacted by the Pechanga General Membership, the authorized governing body of the Pechanga Band of Luiseño Indians, as evidenced by General Membership Resolution No. 180415-02.

**1.3 Purpose.** The purpose of this Act is to prohibit Discrimination, Harassment, and Retaliation by Employers against Gaming Employees and Gaming Applicants; and to establish a claims process for resolving such Discrimination, Harassment, and Retaliation.

**1.4 Definitions.** As used in this Act, the capitalized terms set forth below shall have the following meanings unless the context requires otherwise:

(a) Administrative Law Judge. Administrative Law Judge means the Administrative Law Judge assigned to perform an administrative review of a Claimant's Claim.

(b) Band. Band means the Pechanga Band of Luiseño Indians, sometimes referred to as the Temecula Band of Luiseño Indians, federally recognized as the Pechanga Band of Luiseño Mission Indians of the Pechanga Reservation.

(c) Claim. Claim means a claim brought pursuant to this Act by a Gaming Employee or Gaming Applicant.

(d) Claimant. Claimant means a Gaming Employee or Gaming Applicant who submits a Claim pursuant to this Act.

(e) Tribal-State Compact. Tribal-State Compact means the Tribal-State Compact between the State of California and the Pechanga Band of Luiseño Indians, initially enacted on or about September 10, 1999, as amended on August 28, 2006 and August 4, 2016, and as published in the Federal Register.

(f) Discrimination. Discrimination means taking a tangible employment action that materially and adversely impacts the employment status, terms, conditions, privileges, opportunities, or compensation of a Gaming Employee or Gaming Applicant based on the Gaming Employee's or Gaming Applicant's actual or perceived Protected Characteristic, where the

employment action would not have occurred but for the actual or perceived Protected Characteristic.

(g) Employer. Employer means the entity responsible for hiring, firing, and controlling the work of a Gaming Employee or Gaming Applicant. The term Employer includes an agent, proxy, or alter ego acting on the entity's behalf.

(h) Gaming Activities. Gaming Activities means the Class III gaming activities authorized under the Compact.

(i) Gaming Applicant. Gaming Applicant means an individual applying for employment in, in connection with, or relating to the operation of, the Band's Gaming Operation, Gaming Facility, or Gaming Activities.

(j) Gaming Employee. Gaming Employee means an individual employed in, in connection with, or relating to the operation of, the Band's Gaming Operation, Gaming Facility, or Gaming Activities; who is subjected to the Employer's control and direction; and who receives a salary or hourly wage directly from the Employer for services rendered in, in connection with, or relating to the operation of, the Band's Gaming Operation, Gaming Facility, or Gaming Activities. Independent contractors are not considered Gaming Employees.

(k) Gaming Facility. Gaming Facility means any building in which Gaming Activities or any Gaming Operations occur, or in which business records, receipts, or funds of the Gaming Operation are maintained (excluding offsite facilities primarily dedicated to storage of those records and financial institutions), and all rooms, buildings, and areas, including hotels, parking lots, and walkways, a principal purpose of which is to serve the activities of the Gaming Operation and Facility rather than providing them with an incidental benefit.

(l) Gaming Operation. Gaming Operation means the business enterprise that offers and operates Gaming Activities, whether exclusively or otherwise.

(m) Harassment. Harassment means unwelcome conduct in the workplace that is based on a Gaming Applicant's or Gaming Employee's actual or perceived Protected Characteristic, is sufficiently severe or pervasive to alter the terms and conditions of employment or unreasonably interfere with a Gaming Applicant's or Gaming Employee's performance, and would be considered threatening, intimidating, hostile, or abusive by a reasonable person.

(n) Mediator. Mediator means the third-party neutral assigned to mediate the Claimant's Claim.

(o) Pechanga Tribal Court. Pechanga Tribal Court means the court established by Section 103.1 of the Pechanga Band of Luiseño Mission Indians Judicial Ordinance.

(p) Protected Activity. Protected Activity means opposing practices prohibited by this Act; filing a Claim; testifying, assisting, or participating in an investigation, proceeding, or hearing conducted pursuant to this Act; exercising leave rights granted by applicable Employer policies; making a good-faith report of illegal activity or violations of the Employer's policies; or testifying,

assisting, or participating in an investigation into illegal activity or violations of the Employer's policies.

(q) Protected Characteristic. Protected Characteristic means a Gaming Applicant's or Gaming Employee's race, color, religion, sex, gender, national origin, ancestry, physical or mental disability or medical condition, age for individuals over 40 years of age, genetic information, sexual orientation, gender identity, gender expression, marital status, or veteran or military status.

(r) Retaliation. Retaliation means taking a tangible employment action that materially and adversely impacts the employment status, terms, conditions, privileges, opportunities, or compensation of a Gaming Applicant or Gaming Employee based on the Gaming Applicant's or Gaming Employee's Protected Activity, where the employment action would not have occurred but for the Gaming Applicant's or Gaming Employee's Protected Activity.

(s) Tribal Council. Tribal Council means the Tribal Council of the Pechanga Band of Luiseño Indians.

(t) All other terms not defined in this Act shall have the definition assigned to them in the Tribal-State Compact and, if the terms are not defined therein, shall be interpreted pursuant to their regular and ordinary meaning.

**1.5 Prohibited Conduct.** Discrimination, Harassment, or Retaliation by an Employer against a Gaming Employee or Gaming Applicant is prohibited. For purposes of this Section 1.5, an action shall be deemed to be "by an Employer" if it is:

(a) A tangible employment action that materially and adversely impacts the employment status, terms, conditions, privileges, opportunities, or compensation of the subject Gaming Employee or Gaming Applicant;

(b) Harassment by a supervisor with immediate or successively higher authority over the Gaming Employee or Gaming Applicant, except that an Employer may not be held liable for such Harassment if the Employer exercised reasonable care to prevent and promptly correct the Harassment, and the Gaming Employee or Gaming Applicant unreasonably failed to take advantage of the preventive or corrective opportunities provided by the Employer or to otherwise avoid harm;

(c) Harassment by a coworker, other than a supervisor with immediate or successively higher authority over the Gaming Employee or Gaming Applicant, only if the Employer knew or should have known of the Harassment and failed to take prompt remedial action; or

(d) Harassment by a nonemployee, only if the Employer knew or should have known of the Harassment and failed to take prompt remedial action.

**1.6 Native American Preference.** The Band hereby reserves its right to provide Native American preference in employment, and nothing in this Act shall preclude the Band from exercising this right.

## 1.7 Sovereign Immunity.

(a) The Band hereby grants a limited waiver of the sovereign immunity of those entities and persons defined as Employers under this Act, for the limited and sole purpose of resolving Claims of Discrimination, Harassment, and Retaliation through the Claims Resolution Process set forth in Section 1.8. Aside from this limited waiver, nothing in this Act is intended to be, or shall be construed as, a waiver of sovereign immunity.

(b) The limited waiver of sovereign immunity set forth in this Section 1.7 extends exclusively to the jurisdiction of the Mediator, Administrative Law Judge, and Pechanga Tribal Court. Nothing in this Act is intended to be, or shall be construed as, a submission to the jurisdiction of any other court, agency, regulatory body, or other entity, including but not limited to, the United States Equal Employment Opportunity Commission, the California Department of Fair Employment and Housing, the California Fair Employment and Housing Commission, or any federal, state, or local court.

## 1.8 Claims Resolution Process.

(a) General Provisions.

(1) The Claims Resolution Process set forth in this Section 1.8 is the exclusive legal remedy for Discrimination, Harassment, or Retaliation by an Employer against a Gaming Applicant or Gaming Employee. The Band expressly rejects and will not recognize any alternative legal remedy for such Discrimination, Harassment, or Retaliation.

(2) An individual may only file a Claim under this Act if the individual was a Gaming Applicant or Gaming Employee at the time of the wrongful conduct alleged in the Claim. Any Claim submitted by an individual who was not a Gaming Applicant or Gaming Employee at the time of the wrongful conduct alleged in the Claim is procedurally barred and will be rejected.

(3) Claims may only be brought against Employers of Gaming Applicants and Gaming Employees. Claims may not be brought against individual employees or any entity not defined as an Employer under this Act.

(4) Claims filed under this Act may only be pursued on an individual basis. Class, collective, and representative claims are prohibited.

(5) The result of the Claims Resolution Process set forth in this Section 1.8 shall be final and binding on all parties to the Claim. A Claim may not be submitted for resolution more than once.

(6) The procedural requirements set forth in this Section 1.8 are jurisdictional. Neither the Mediator, Administrative Law Judge, nor Pechanga Tribal Court is authorized to waive any procedural requirement of this Section 1.8.

(7) For purposes of this Act, the date of mailing of any document shall be the date such document is deposited with the United States Postal Service or an overnight delivery

service, as evidenced by a postmark or equivalent marking confirming the date of receipt by the United States Postal Service or overnight delivery service.

(b) Administrative Procedure.

(1) In order to pursue a Claim for Discrimination, Harassment, or Retaliation under this Act, a Claimant must give the Clerk of the Pechanga Tribal Court written notice of the Claimant's intent to pursue a Claim within one (1) year of the alleged act of Discrimination, Harassment, or Retaliation. The written notice required by this subdivision 1.8.(b)(1) shall be submitted either (i) in person; (ii) via overnight delivery; (iii) via certified mail; or (iv) via electronic mail. The written notice shall be submitted to:

Clerk
Pechanga Tribal Court
P.O. Box 1477
Temecula, CA 92593
courtclerk@pechanga-nsn.gov

(2) Within 30 calendar days of receiving the Claimant's written notice specified in subdivision 1.8(b)(1), the Clerk of the Pechanga Tribal Court shall provide the Claimant, by personal service or certified mail, return receipt requested, an administrative claim form and written notice that the Claimant shall have one hundred eighty (180) calendar days from the date of the Clerk's notice to proceed with the Claim.

(3) In order to proceed with the Claim, the Claimant must file the administrative claim form, completed and executed under penalty of perjury, with the Clerk of the Pechanga Tribal Court within one hundred eighty (180) calendar days of the date of the Clerk's written notice specified in subdivision 1.8(b)(2). Administrative claim forms must be submitted either in person or via certified mail at the address listed in subdivision 1.8(b)(1). If the Claimant submits the administrative claim form via certified mail, the date of mailing shall be considered the filing date of the Claim.

(4) Within 15 calendar days of the filing date of the Claim, the Clerk of the Pechanga Tribal Court will assign the Claim to a third-party neutral ("Mediator"). Within 30 calendar days of receipt of the Claim, the Mediator will mediate the Claim. If the Claim is resolved through mediation, the Claimant shall submit a request for dismissal of the Claim to the Clerk of the Pechanga Tribal Court no later than the day the resolution becomes final. Upon receipt of the Claimant's request for dismissal of the Claim, the Clerk of the Pechanga Tribal Court shall dismiss the Claim with prejudice.

(5) If a Claim is not resolved in mediation, the Claim will be assigned to an Administrative Law Judge ("ALJ") selected at random from a pool assembled pursuant to this Act, which is comprised of individuals with at least seven years of experience in litigation or administrative law as a licensed attorney and expertise in tribal and employment law. Within 60 calendar days of the ALJ's receipt of a Claim, the ALJ shall schedule an in-person hearing during which the Claimant and Employer may present relevant evidence regarding the Claim. The hearing

will be recorded, and each party may obtain a transcript of the hearing at its own expense. Absent extraordinary circumstances, failure of the Claimant to appear for the hearing will be grounds for dismissal of the Claim. Within 30 calendar days of the hearing, the ALJ shall issue a reasoned decision in writing to the Claimant and Employer. The ALJ's decision shall contain detailed findings of fact and conclusions of law, as well as a description of any Award to be made to Claimant. Any Award to Claimant shall be limited to economic damages in an amount not to exceed the Employer's applicable insurance policy limits or $3,000,000, whichever is greater. The ALJ shall not have any authority to award compensatory or punitive damages, injunctive relief, or attorneys' fees.

(6) Within 30 calendar days of the ALJ's decision, either the Claimant or the Employer may appeal the decision to the Pechanga Tribal Court by filing a Notice of Appeal with the Clerk of the Pechanga Tribal Court in person or via certified mail at the address listed in subdivision 1.8(b)(1). On the date of filing, the filing party must serve all other parties to the Appeal with a copy of the Notice of Appeal via personal service or certified mail, return receipt requested. If a Notice of Appeal is not filed within 30 calendar days of the ALJ's decision, the ALJ's decision shall be considered final and binding on all parties to the Claim, and the Clerk of the Pechanga Tribal Court shall dismiss the Claim with prejudice.

(c) Tribal Court Appellate Procedure.

(1) Within 30 calendar days of the filing of a Notice of Appeal, the Pechanga Tribal Court will commence its review of the ALJ's decision. The Pechanga Tribal Court's review will be based solely on the record developed during the ALJ's administrative hearing process. The Pechanga Tribal Court will not accept new evidence that was not before the ALJ during the appellate review process.

(2) The ALJ's findings of fact shall be reviewed according to the substantial evidence standard and shall be upheld if there was substantial evidence to reasonably support the ALJ's findings.

(3) The ALJ's conclusions of law shall be reviewed by the Pechanga Tribal Court without deference to the ALJ's determination, *i.e.*, review of the ALJ's legal conclusions shall be de novo.

(4) The ALJ's discretionary determinations shall be reviewed for abuse of discretion and upheld if it is reflected in the record that the ALJ exercised his or her discretionary authority, applied the appropriate legal standard to the facts, and did not abuse his or her discretion.

(5) The Pechanga Tribal Court will issue a decision on the Appeal within one hundred eighty (180) calendar days of the filing of the Notice of Appeal. The Pechanga Tribal Court's decision may affirm, modify, vacate, set aside, or reverse any decision of the ALJ; or remand the case and direct entry of an appropriate decision, or require such further proceedings as may be just and equitable under the circumstances. The decision of the Pechanga Tribal Court shall be final and binding on all parties to the Appeal.

(6) The parties to the Appeal shall each bear their own costs and fees, regardless of the outcome of the Appeal. The Pechanga Tribal Court shall have no authority to award attorneys' fees, costs, or other fees or expenses.

**1.9 Notice.** This Act shall be made available to all Gaming Applicants and Gaming Employees. A poster summarizing the major provisions of this Act shall be displayed in a conspicuous manner in the places where other notices to Gaming Applicants and Gaming Employees are customarily posted. If a Gaming Applicant or Gaming Employee requests a copy of this Act, the individual shall be provided a copy.

**1.10 Sovereign Immunity.** Nothing in this Act shall be deemed to waive the sovereign immunity of the Band or any of its enterprises, officers, agents or employees, except as provided in Section 1.7, above.

**1.11 Repeal of Prior Employment Claims Acts.** All prior employment claims acts or ordinances of the Band are repealed.

**1.12 Severability.** If any part of this Act is found void, voidable, or without legal effect, the remainder of this Act shall continue to remain in full force and effect.

**1.13 Effective Date.** This Act shall take effect on July 1, 2018. The Act shall not apply retroactively prior to the effective date. In the event the Tribal-State Compact expires or is no longer in effect for any reason whatsoever, the provisions of this Act shall be immediately revoked.

**1.14 Amendments.** This Act may be amended or repealed only by a majority vote of the General Membership of the Band, or its duly authorized delegate, acting at a duly noticed meeting.

**1.15 Non-Substantive Revisions.** Non-substantive revisions to this Act, including formatting and other technical revisions that do not affect the substance and meaning of the provisions, may be made by the Tribal Council.

## CERTIFICATION

The undersigned, the duly authorized Secretary of the Temecula Band of Luiseño Mission Indians, sometimes referred to as the Pechanga Band of Mission Indians, federally recognized as the Pechanga Band of Luiseño Mission Indians, does hereby certify that the foregoing Pechanga Employment Claims Act of 2018 (Pechanga Code of Ordinances Title 10, Division 2, Article 1) was adopted via General Membership Resolution No. 180415-02 at a duly called General Membership Meeting held on the 15th day of April, 2018, by a vote of 118 yes, 4 no, and 3 abstaining, and such Act has not been rescinded or amended in any way.

Dated: April 19, 2018

Louise Burke
Tribal Secretary